
HOUSE BILL 2599

State of Washington

69th Legislature

2026 Regular Session

By Representatives Kloba, Dent, Fosse, Simmons, Duerr, Stearns, Rule, Goodman, Ryu, and Pollet

Read first time 01/21/26. Referred to Committee on Health Care & Wellness.

1 AN ACT Relating to protecting the integrity of therapy and
2 psychotherapy services; adding a new section to chapter 18.130 RCW;
3 adding a new chapter to Title 19 RCW; and creating a new section.

4 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF WASHINGTON:

5 NEW SECTION. **Sec. 1.** The legislature finds that artificial
6 intelligence systems are increasingly deployed to provide mental and
7 behavioral health services to Washington residents, including
8 vulnerable populations such as minors and individuals in crisis.
9 These artificial intelligence systems pose significant risks when
10 deployed without appropriate human oversight, clinical validation,
11 and regulatory safeguards.

12 Artificial intelligence systems cannot replicate the clinical
13 judgment, ethical obligations, and therapeutic relationship essential
14 to licensed mental health practice. Consumers are often unaware when
15 interacting with artificial intelligence rather than licensed
16 professionals. Artificial intelligence companies have used protected
17 professional titles and clinical terminology, misleading consumers
18 about system qualifications and capabilities. Minors and vulnerable
19 populations are particularly susceptible to harm from unregulated
20 artificial intelligence mental health tools.

1 The legislature intends to prohibit artificial intelligence
2 systems from independently providing mental or behavioral health
3 services while preserving appropriate use of artificial intelligence
4 as an assistive tool by licensed professionals under direct
5 supervision.

6 NEW SECTION. **Sec. 2.** A new section is added to chapter 18.130
7 RCW to read as follows:

8 (1) A licensed professional may not use artificial intelligence
9 in such a way that allows it to do any of the following:

10 (a) Make independent therapeutic decisions;

11 (b) Directly interact with clients in any form of therapeutic
12 communication;

13 (c) Generate therapeutic recommendations or treatment plans
14 without review and approval by the licensed professional; or

15 (d) Detect emotions or mental states of clients.

16 (2) A licensed professional may not use artificial intelligence
17 to assist in providing supplementary support in therapy or
18 psychotherapy where the client's therapeutic session is recorded or
19 transcribed unless:

20 (a) The patient or the patient's legally authorized
21 representative is informed in writing of the following: (i) That
22 artificial intelligence will be used; and (ii) the specific purpose
23 of the artificial intelligence tool or system that will be used; and

24 (b) The patient or the patient's legally authorized
25 representative provides consent to the permitted use of artificial
26 intelligence.

27 (3) A licensed professional who violates subsection (1) or (2) of
28 this section is subject to discipline pursuant to this chapter, the
29 uniform disciplinary act.

30 (4) For purposes of this section, the following definitions
31 apply:

32 (a) (i) "Administrative support" means tasks performed to assist a
33 licensed professional in the delivery of therapy or psychotherapy
34 services that do not involve communication.

35 (ii) "Administrative support" includes, but is not limited to,
36 the following:

37 (A) Managing appointment scheduling and reminders;

38 (B) Processing billing and insurance claims; and

1 (C) Drafting general communications related to therapy logistics
2 that do not include therapeutic advice.

3 (b) "Artificial intelligence" means the use of machine learning
4 and related technologies that use data to train statistical models
5 for the purpose of enabling computer systems to perform tasks
6 normally associated with human intelligence or perception, such as
7 computer vision, speech or natural language processing, and content
8 generation.

9 (c)(i) "Consent" means a clear, explicit affirmative act by an
10 individual that: (A) Unambiguously communicates the individual's
11 express, freely given, informed, voluntary, specific, and unambiguous
12 written agreement, including a written agreement provided by
13 electronic means; and (B) is revocable by the individual.

14 (ii) "Consent" does not include an agreement that is obtained by
15 the following: (A) The acceptance of a general or broad terms of use
16 agreement or a similar document that contains descriptions of
17 artificial intelligence along with other unrelated information; (B)
18 an individual hovering over, muting, pausing, or closing a given
19 piece of digital content; or (C) an agreement obtained through the
20 use of deceptive actions.

21 (d) "Licensed professional" means an individual who holds a valid
22 license in Washington to provide therapy or psychotherapy services,
23 including a psychologist licensed under chapter 18.83 RCW, a clinical
24 social worker, mental health counselor, or marriage and family
25 therapist licensed under chapter 18.225 RCW, a substance use disorder
26 professional certified under chapter 18.205 RCW, a psychiatrist
27 licensed under chapter 18.57 or 18.71 RCW, a psychiatric nurse or
28 psychiatric advanced practice registered nurse licensed under chapter
29 18.79 RCW, a music therapist licensed under chapter 18.233 RCW, or
30 equivalent.

31 (e) "Permitted use of artificial intelligence" means the use of
32 artificial intelligence tools or systems by a licensed professional
33 to assist in providing administrative support or supplementary
34 support in therapy or psychotherapy services where the licensed
35 professional maintains full responsibility for all interactions,
36 outputs, and data use associated with the system and satisfies the
37 requirements of subsections (1) and (2) of this section.

38 (f) "Practice of peer support services" has the same meaning as
39 in RCW 18.420.010.

(g) "Religious counseling" means counseling provided by clergy members, pastoral counselors, or other religious leaders acting within the scope of their religious duties if the services are explicitly faith-based and are not represented as clinical mental health services or therapy or psychotherapy services.

(h)(i) "Supplementary support" means tasks performed to assist a licensed professional in the delivery of therapy or psychotherapy services that do not involve therapeutic communication and that are not administrative support.

(ii) "Supplementary support" includes, but is not limited to, the following: (A) Preparing and maintaining client records, including therapy notes; (B) analyzing anonymized data to track client progress or identify trends, subject to review by a licensed professional; and (C) identifying and organizing external resources or referrals for client use.

(i)(i) "Therapeutic communication" means any verbal, nonverbal, or written interaction conducted in a clinical or professional setting that is intended to diagnose, treat, or manage an individual's mental, emotional, or behavioral health concerns.

(ii) "Therapeutic communication" includes, but is not limited to: (A) Direct interactions with clients for the purpose of understanding or reflecting their thoughts, emotions, or experiences; (B) providing guidance, therapeutic strategies, or interventions designed to achieve mental health outcomes; (C) offering emotional support, reassurance, or empathy in response to psychological or emotional distress; (D) collaborating with clients to develop or modify therapeutic goals or treatment plans; and (E) offering behavioral feedback intended to promote psychological growth or address mental health conditions.

(j)(i) "Therapy or psychotherapy services" means services provided to diagnose, treat, or improve an individual's mental health or behavioral health.

(ii) "Therapy or psychotherapy services" does not include religious counseling, the practice of peer support services, or self-help materials and educational resources that are available to the public and do not purport to offer therapy or psychotherapy services.

NEW SECTION. **Sec. 3.** The definitions in this section apply throughout this chapter unless the context clearly requires otherwise.

1 (1) "Artificial intelligence" means the use of machine learning
2 and related technologies that use data to train statistical models
3 for the purpose of enabling computer systems to perform tasks
4 normally associated with human intelligence or perception, such as
5 computer vision, speech or natural language processing, and content
6 generation.

7 (2) "Licensed professional" means an individual who holds a valid
8 license in Washington to provide therapy or psychotherapy services,
9 including a psychologist licensed under chapter 18.83 RCW, a clinical
10 social worker, mental health counselor, or marriage and family
11 therapist licensed under chapter 18.225 RCW, a substance use disorder
12 professional certified under chapter 18.205 RCW, a psychiatrist
13 licensed under chapter 18.57 or 18.71 RCW, a psychiatric nurse or
14 psychiatric advanced practice registered nurse licensed under chapter
15 18.79 RCW, a music therapist licensed under chapter 18.233 RCW, or
16 equivalent.

17 (3) "Practice of peer support services" has the same meaning as
18 in RCW 18.420.010.

19 (4) "Religious counseling" means counseling provided by clergy
20 members, pastoral counselors, or other religious leaders acting
21 within the scope of their religious duties if the services are
22 explicitly faith-based and are not represented as clinical mental
23 health services or therapy or psychotherapy services.

24 (5)(a) "Therapy or psychotherapy services" means services
25 provided to diagnose, treat, or improve an individual's mental health
26 or behavioral health.

27 (b) "Therapy or psychotherapy services" does not include
28 religious counseling, the practice of peer support services, or self-
29 help materials and educational resources that are available to the
30 public and do not purport to offer therapy or psychotherapy services.

31 NEW SECTION. **Sec. 4.** An individual, corporation, or entity may
32 not provide, advertise, or otherwise offer therapy or psychotherapy
33 services, including through the use of internet-based artificial
34 intelligence, to the public in Washington unless the therapy or
35 psychotherapy services are conducted by an individual who is a
36 licensed professional.

37 NEW SECTION. **Sec. 5.** The legislature finds that the practices
38 covered by this chapter are matters vitally affecting the public

1 interest for the purpose of applying the consumer protection act,
2 chapter 19.86 RCW. A violation of this chapter is not reasonable in
3 relation to the development and preservation of business and is an
4 unfair or deceptive act in trade or commerce and an unfair method of
5 competition for the purpose of applying the consumer protection act,
6 chapter 19.86 RCW.

7 NEW SECTION. **Sec. 6.** Sections 3 through 5 of this act
8 constitute a new chapter in Title 19 RCW.

9 NEW SECTION. **Sec. 7.** If any provision of this act or its
10 application to any person or circumstance is held invalid, the
11 remainder of the act or the application of the provision to other
12 persons or circumstances is not affected.

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